TRUEANON

Episode 221: Marathon Men (Part 2)

April 18, 2022

with Brace & Liz
guests Ben Howard, Howie

Transcribed with Whisper and pyannote, then proofread. Speaker labels are automatic and may contain mistakes.

BRACE 0:00
Hey, y'all, since the last episode came out, there's been a lot of rumors kind of spreading around, and I want to make it clear here: I didn't sell Liz to Chechnya.

LIZ 0:00
Oh my god, like— no.

BRACE 0:00
That was a fake listing.

LIZ 0:00
Wait, there was a real listing?

BRACE 0:00
Yeah, no, don't worry about it.

LIZ 0:00
You said it was just a Twitter thing.

BRACE 0:00
You can't even— it turns out you can't even send people, like, in boxes and shit. They have to be dead for that, and, like, that's— who would pay for that?

LIZ 0:26
Well, joke's on you, bitch, because you can't sell nothing to them with the sanctions.

BRACE 0:55
Hey, so correction from the open earlier: I am selling Liz to Chechnya. She'll be arriving there shortly. So if you have any TrueAnon listeners in Grozny, she'll be doing a meet and greet where she will be in a cage.

LIZ 0:55
That's awful. Don't joke about that.

BRACE 0:55
Okay, yes, I'm just joking. Hello, Liz, my name is Brace.

LIZ 1:16
Hello, Brace, my name is Liz, and we are, as always, joined by producer Young Chomsky, who is not in a cage. And this is TrueAnon. Hello.

BRACE 1:31
Hello, we have a long fucking episode, so let's not even— I mean, listen, if you want us to sum up what we talked about last time, we actually do it at the top of this episode—

LIZ 1:31
No, of last episode.

BRACE 1:31
Oh, we did. Oh yeah, you're right, we did do that.

LIZ 1:48
Yeah, we're doing lots of summing up. We're doing some— lazy listeners out there.

BRACE 1:51
Here's the thing: you want to know what the Boston bombing— www.wikipedia.com slash article slash boston underscore bombing hashtag controversies and conspiracies.

LIZ 2:05
No, but I'm gonna say this: if you like drugs— uh-huh— if you like meatball sandwiches— sandwiches. Oh, yeah. If you like samurai swords, if you like terror watch lists, uncles of

all stripes— what else do we got in this episode? Crack?

BRACE 2:28
Yeah, crack. I'll be real with you, I do like— legitimately, in, like, a real way, from my heart— no, Micah, don't answer this— some of those are, like, really among my favorite things in the world. I was also just thinking, when you said that, because you talk all fucked up, I thought you said tarot watch list. And I was like, we got to start putting women on that. There needs to be a tarot watch list. So if you're, like, you know, you're on your little Bumble and some woman messages you, a red thing comes up like, "She thinks she can do magic." Like, that voice says it to you from your Bumble. The dude ombre security.

LIZ 2:28
Wait, ombre, like the hair thing?

BRACE 2:28
No.

LIZ 2:28
Okay, because that's another thing that goes— that's pretty close to tarot. No one's doing ombre, and it's ombre— ombre, yeah. No one's doing that anymore.

BRACE 3:17
You— women will text you and be like, "Oh, I'm getting an ombre." I'm like, you're getting a— friend who's texting you, Mexican friend.

LIZ 3:17
What is it, 2012? No one's texting you that.

BRACE 3:17
Well, women don't text me that, but I look at other people's phones sometimes when they're texting people.

LIZ 3:31
No one's getting it. If they're doing it, they're getting balayage. Balayage. All right, everyone, let's get into the episode.

BRACE 3:50
Hey, y'all, just at the top of the episode, I want to mention that we're actually down three people today. It's actually just gonna be me doing this episode. I found out that Howie, Ben, and Liz were actually all working for the Boston Irish Mafia while we were recording the last episode, and in fact, over a two-and-a-half-hour period, I found out that they had actually betrayed me in order to fulfill the goals of their mafia superiors. I actually haven't really fully seen The Departed, so that's the plot of it, though.

LIZ 4:22
They should do an update to The Departed, but it's about podcasters. Yeah.

BEN 4:26
The thing about The Departed is it's not even really a Boston movie. It's a Hong Kong movie that they just set in Boston because that was the hot thing to do at the time. It doesn't even have anything to do with Boston.

LIZ 4:36
But I don't understand, because I thought everyone was like, oh, this is totally based on John Connolly. Yeah, but it's not—

BEN 4:43
Just a coincidence.

LIZ 4:45
It would be really cool if the Hong Kong one took it from John Connolly, and then they took it back and then, like, put it back in Boston.

BRACE 4:50
Well, I mean, think about it like this. Like, Hong Kong, they've always called it China's Boston, right? Absolutely true. They've— sometimes they even call it the Town. And the similarities: it's mostly Irish, there's a lot of policemen, Matt Damon's from there. Like, it's like a— there's a— there's a lot of, like— a lot of really kind of crazy synchronicities there with Hong Kong and Boston.

BEN 5:16
Yeah, Boston's stolen a lot from Hong Kong. I mean, there's the Hong Kong bar— I mean, a lot of people will be familiar with that. Exactly. You know, there's a lot of these connections, for sure.

LIZ 5:24
I feel like Hong Kong would have a Patriots' Day too.

BRACE 5:27
Yeah, exactly. I mean, people— I mean, even in Massachusetts, sometimes people call Boston Massachusetts' Worcester. Is often what it's referred to as. Anyways, hello, welcome to No More Brother Wars. We have with us today Howie, Ben, and, of course, the third brother, Liz.

LIZ 5:27
Oh, that's nice. Hello, everyone.

BRACE 5:27
Hello. Are you guys excited to talk about this again for— we have seven hours in the docket today?

BEN 6:02
I was hoping for at least six or seven, yeah.

BRACE 6:04
Yeah, yeah. We're going to actually just do, like, an hour, minute-by-minute recitation of what we talked about last time. We're going into really granular detail this time. Liz, why don't you kick us off? What are we talking about today?

LIZ 6:19
So we ended last episode— the last episode— kind of on a cliffhanger of saying, well, we've said that Tamerlan is maybe a Fed, but we didn't explain any of that. And whoops, that's what we're going to try and do in this episode. So this whole episode is really about Tamerlan. We're going to really focus on him. We said he had connections to the feds. We mentioned maybe possibly other government agencies. We'll get into all of that. He, of course, died before any kind of

these questions about him or about the bombing or his relationship to the U.S. government— like, any of those could be answered.

We should say that, for their part, the FBI came out and officially denied that Tamerlan was ever an informant. On October 18th, 2013, in response to a ton of media inquiries, basically, like, about this exact thing, the FBI put out a joint statement with a couple other Massachusetts law enforcement agencies that said, "Members of the Joint Terrorism Task Force did not know their identities"— talking about the brothers— "until shortly after Tamerlan Tsarnaev's death, when they fingerprinted his corpse. Additionally, the Tsarnaev brothers were never sources for the FBI, nor did the FBI attempt to recruit them as sources. To be absolutely clear, no one was surveilling the Tsarnaevs, and they were not identified until after the shootout. Any claims to the contrary are false."

Which— I don't know how you guys feel about that statement. Well, I'll just say it: I think they're lying. I think that's a straight-up lie, least of which because, as we already know, and we talked about in the first episode, they— it seemed like there absolutely were federal agents surveilling the brothers before the— even, like, anytime close to the shootout, let alone possibly even a deeper and longer-held relationship going back years.

So I think that to kind of get into this, maybe we should remind our listeners a little bit about the

Tsarnaev family and their journey to the United States. Brace, you mentioned that they both met in Siberia, right? Anzor and Zubeidat?

BRACE 8:40

Yeah. I don't know exactly how to say her name. Zubeidat, I assume. It's actually a pretty great place to meet women, because it's really cold there, and so, you know, you can kind of just be like, well, do you want to come back and, like— hey, I'm from the samovar— like, I don't really listen to records that— yeah, they met there. They— a— they moved around Russia a ton. I gotta say, Anzor does not seem like he's really good at keeping what you might call a steady job, and his wife was always nagging him about that. And so they— they were moving around Russia, working odd jobs, basically chasing work: Kyrgyzstan, Kalmykia, all these different kind of places, Chechnya, as I mentioned last episode, back to Kyrgyzstan. They have all these kids. They come to America— they have four kids— they come to America with their youngest son, Dzhokhar, aka Jahar. And sometime later, I think the next year or a year after that, they bring the rest of the children over, two daughters and Tamerlan, who is by this time 18 years old, and kind of have a somewhat similar experience as they did in Russia and America, kind of, like, bouncing from place to place, except maybe a little less work, and essentially only in, like, the Boston metro area. They don't really go much further than that. In fact, I'm really unsure if they got much further than, like, Massachusetts. I know that the Tsarnaev brothers went to New York a

couple of times, judging by Dzhokhar's Twitter. Not really sure they did a lot of traveling within America.

But yeah, and so where we left it, kind of, last time is the general story is that Tamerlan, influenced by his mother and by online propaganda, got into jihadism and influenced his weed-addled younger brother into setting off these two bombs. And then, of course, Dzhokhar runs over his brother by accident after or during a shootout with police and then is arrested himself a day later, having been plugged full of holes by both the FBI, SWAT teams, BPD, all these different people. And that's kind of where we left it. It's like these two radical Muslim brothers, one is dead and the other is severely injured and in prison.

And that was coupled with the FBI pronouncement that they didn't have any links to the brothers, that they'd never surveilled them. That's kind of just what the government's case has always been, is that we don't know these guys. Maybe we made some mistakes, and we should have known them. We should have had them on our radar, but that's our bad. We just had no idea that these guys were so crazy.

LIZ 11:20
Yeah. John Kerry famously said— he said, "Tamerlan learned something where he went," talking about a trip that Tamerlan took to Russia that we'll get into. "He learned something where he went and came back with a willingness to kill people." And yeah, I guess it's just— it's not clear at all that that is what actually happened here.

You mentioned— you said Anzor and Zubeidat and Dzhokhar. Yeah. They arrived in the U.S. in 2002. They originally had a tourist visa and then had to apply for asylum after that. And the details around, particularly, Tamerlan's kind of quest for citizenship and his immigration status through the years is really confusing and really complicated. One of the— just to start us right off the bat, one of the very confusing details, just immediately, is that we don't actually know which country Anzor was granted asylum from. That was actually redacted in the immigration documents that were finally released in 2016 from Tamerlan's immigration file. So it's, like, a little confusing, kind of, exactly, like— I mean, that's something that would, you know, give us a lot more insight into, like, their relationship with the former country. You know, when you're granted asylum, you have an adversarial relationship with the country that you came from, right?

BRACE 12:42

Yeah. Although sometimes, Liz, honestly, it seems to me people apply for asylum in America, but to me, it seems like they're applying to an asylum. That is America.

LIZ 12:54

And then, yeah, you mentioned that Tamerlan, Bella, and Ailina, their two middle sisters, they came about a year later, after mother and father and baby Dzhokhar, in 2003. But they didn't actually come through Moscow. They actually flew in through Ankara in Turkey. And while they were waiting for their parents' asylum application

to be approved, they were staying with their uncle Ruslan Tsarni in Kazakhstan. So just kind of wanted to set the stage there.

And so in the years that followed, the kids, you know, they all kind of get green cards at different— at different varying points. You know, I— I don't— I hope— I don't know if people know this, but just to be clear, like, you get a green card, you're a permanent resident, you're not actually a citizen. You still have to go then and apply for citizenship and become naturalized, which Dzhokhar ended up doing. He became a naturalized citizen on— I swear to god this is true— September 11th, 2012. Just one of one there. You know, September 11th is— is actually going to come up again in this episode. And there's just something magical about that, dude. I'm just going to throw that out there.

BRACE 14:11

One of many of Boston's 9/11s. Yes.

LIZ 14:15

But Tamerlan's citizenship, and just his immigration status, is a bit more complicated. It seems like he finally did pass the U.S. citizenship test five months before the bombing, and he did the whole swearing-in thing in front of the judge, and he took his oath. But despite that, in the DHS files, when you go kind of look through it, his application had not yet been approved.

Now, Howie, I know that you kind of have, like, gone through a lot of this and a lot of these documents. The— in— I was looking at the DHS files. This

thing is heavily redacted. The entire packet is 651 pages, but only, like, 200 pages— 206 pages, I guess— were released in full. There's just redactions all over the place. You can't even really make anything out. And it's really confusing trying to kind of put together a timeline of what Tamerlan was applying for and when, because it seems like there's a lot of inconsistencies and confusion around this whole thing.

HOWIE 15:22

Yeah. And one of the things that gets mentioned a lot is the fact that, I think it was 2009, Tamerlan had this domestic violence arrest, which should have disqualified him for five— I think it's five years from that point. He couldn't become a citizen for another five years. So at the time that his oath ceremony happened, he shouldn't have been eligible for citizenship.

LIZ 15:49

Yeah, he had his citizenship application reopened back in 2012 after he returns from Russia, even though he wasn't— he should have been completely ineligible because of the domestic violence crime— arrest, yeah.

BRACE 16:02

Yeah, what's weird too is that, as far as I know, is that in 2012, in October of 2012, he actually was told to, like, report to take his citizenship oath, and then— you know, which was actually pretty quickly, like, soon after this case was reopened, I think six weeks after. And anybody who's listening who's trying to get citizenship knows that it is a long,

drawn-out process sometimes. I mean, I cannot tell you how many supermodels from various parts of Eastern Europe and, honestly, the Caucasus have had to marry in order to get them citizenship. It takes a long time. But just six weeks after that was reopened, he was told to report to take his oath. But what happened that day? Like, it seems— it seems unclear. Like, he did not get— he did not take the oath, he did not become a citizen, but something happened in there where he basically left with sans papiers.

HOWIE 16:55

Yeah, and we don't really even know if he showed up. But— but yeah, like you say, he definitely didn't get his citizenship that day, despite the oath ceremony, you know, being scheduled and him being told to go. But it seems like it was the— the whole thing was scuttled by someone.

BRACE 17:12

Yeah.

BEN 17:15

The whole story about his citizenship is interesting to me because if you go back to— I think it was even before his domestic violence arrest, there was a newspaper article that came out that was about the fact that he wanted— because he was a really good boxer. I think a lot of people who had seen him box and thought that he could even be an Olympic contender, and he certainly wanted that. And— but he could not box for the— you know, he couldn't box for Russia. You know, he was here, you know, in— you know, he was an asylee, right? Yeah. So he's got to become an American citizen if

he wants to— you know, if he wants to become a boxer. And so that becomes central— certainly become central to McPhee's narrative about why the Boston bombing happened. I don't know— I don't know that I 100% believe that, but it does seem like it was something that he definitely wanted.

And when you look at the sequence of events— because we'll get into what he was doing in Russia and before that, the possibility that he was a drug informant. And when you look at the timeline of his coming back from Russia in July of 2012— I think it was July of 2012. Right, he comes back from Russia in July of 2012, and then, like, a month later, his citizenship application, which had been closed, is immediately opened. And then, like you said, Brace, six weeks after that, he's got this swearing-in ceremony, which is just an incredibly tight timeline. And from McPhee's account— you know, she has sources that have told her that it was the FBI. You know, I mean, she's pretty explicit in her book that it was the FBI that was pushing this process forward.

And then for some reason, you know, in— in— and in fact, even— even they went so far as to— despite the fact that at this point, he was already on a terror watch list for reasons that we'll get into later— two, in fact. Yeah. And they— they contacted the FBI. They contacted this guy, David Cedarleaf, who— who is no longer at the Boston FBI. He's— he's since retired. But they contacted him and asked him, you know, is this guy any kind of threat or anything like that? And he said, definitely not. But then, despite that, for some reason, in

early 2013, the application is basically delayed, and seemingly delayed indefinitely. I mean, obviously, he then died in April.

So it seems to me— I mean, this is just speculation, but it does seem to me like this was at least part of the payment for services rendered over the course of his career as some kind of government asset. And for some reason, it didn't work out in that January 2013 timeframe. So what happened there, it's very hard to understand. But I do think that just the timeframe of his coming back from Russia and then his application immediately being reopened, and six weeks later getting this swearing-in ceremony scheduled— something is definitely going on there.

LIZ 20:27

Yeah, you mentioned payment rendered, and I kind of want to highlight that, because the USCIS— maybe people have heard of this back during a lot of the ACLU lawsuits against DHS on the way they were handling immigration, particularly from majority-Muslim countries. But there's a program that USCIS runs called CARP, I guess. I don't know how else to call it. CARP. It's for good fishermen from, like, seaborne-based countries.

BRACE 20:58

Yeah.

LIZ 20:59

But it's the Controlled Application Review and Resolution Program. And it was started in 2008, ostensibly to identify what they called, like, security risks. And that's what a lot of the lawsuits the ACLU has filed is,

basically, people getting, like, overly flagged and then not being able to get citizenship because they're from certain countries that are deemed, like, terrorist hotbeds, whatever.

But there's actually, like, dual uses for this program, which I think McPhee and other people, other reporters in Boston, have really kind of dug into, which is that basically— so the FBI has explicitly banned agents from pressuring immigrants to become informants by promising fast-track citizenship. And they've even gone so far— because FBI agents have done this a lot in the past— but so they've gone so far as to basically come out and say, okay, it's not just that you can't do it, you have to explicitly say that you— like, that the FBI will never do that when you're working with informants. But that's all bullshit, right? It's all— it's all total bullshit. The ACLU published a, like, 2012 FBI training PowerPoint presentation that's pretty funny, and it literally contains sections as, like, teaching FBI agents how to recruit specifically Muslim informants by exploiting and having a really good working knowledge of the immigration system, which is a very complicated system, by the way. And the ins and outs of that are very confusing.

So what they would do is— the way that this would work is that the CARP program would basically flag people from certain countries that were applying for naturalization or green cards or asylum or just, like, regular visas. And those applications would then be flagged for further review, which would require cooperation from

other government agencies. And so it's through this program that the FBI specifically is able to basically have access to people's A-file information. Otherwise, the FBI isn't, like, just digging through DHS files. Like, there has to be sort of, like, an official legal reason for this kind of coordination to happen. And so, you know, it's important to note that this is, per the DHS, you know, FOIA files, that Tamerlan Tsarnaev's citizenship application was processed through CARP, right? So he was flagged in this— in this program. But we mentioned the domestic violence incident. That should have been one of the flags that held up his immigration application.

But, you know, we very quickly mentioned the fact that he was on two terror watch lists by January 2012. He takes a controversial trip to Russia, even though he's on the both TIDES and the TECS— I don't know how to even— is it T-I-D-E-S and T-E-C-S? Or is it "Tides" and "Tex"? No one knows— but the two kind of major terror watch lists, and also not having a valid passport.

BRACE 24:20

Yeah, as far as I know, you generally need one of those to fly out of and into countries. I know that there is— there is actually, like, some document that, like, asylum seekers, I think, are given sometimes. But by this point, in 2012, American asylum seekers are not allowed to actually fly to flagged countries, which include Russia at this point, with these certain documents. And so, yeah, it is really a kind of unclear— I mean, part of the reason he said he

was going to Russia, as we'll get to, was to renew his passport, which he does not do. Which, to be fair, I know a lot of people who are like, oh, I just got to renew my passport, and then never do it. But so, you know, it could be he's just being— he's being lazy. But I assume there's something more going on here. So, brothers— Ben, Howie— why did this man go to Russia in 2012?

HOWIE 25:11

Yeah, you know, we have the sort of— I don't know if you want to call it the first cut that McPhee presents, which is basically that he was talking to a few different Russian jihadists, basically. And, yeah, I mean, if you take what she says as truth, then he was basically working as an informant on these jihadi guys, and they end up— you know, Russian forces, and I don't know if there's any American involvement— but they, you know, kill a couple. They basically blow up a cell in Russia, and the Russian Foreign Ministry even said that they use an informant to track that guy, William Plotnikov, and his terror cell.

But it's a little weird, because prior to him going to Russia, the FSB had actually contacted both the FBI and CIA to say that, you know, hey, we've seen this— we've heard of this guy Tamerlan Tsarnaev and his mom, who seemed to be increasingly radicalized, and, you know, hey, you should watch out for terrorism. Which, first of all, is kind of bizarre, that the Russian government would be— or the FSB would be contacting the FBI to tell them that. But second of all, I mean, it doesn't really make sense why

then he would be allowed to go into Russia if the FSB is also worried about him.

BRACE 26:38

Yeah. Yeah. That's something that never really made a lot of sense to me, because, A, okay, maybe there's some reciprocal thing. This is 2012, we're in the global war on terror. I'm sure that they're talking at some level. But at this point, Tamerlan is a pretty low-level guy, if we're doing levels. If we're taking this at face value, that he's a jihadist, he seems like a pretty unimportant one, even if maybe he shows that he's really committed rhetorically. He's never actually done anything, as far as we know.

But the FSB, I will say, or the Russian government writ large, not exactly, like, these is— you know, stand— like, they're not going to be like, well, you know, he hasn't committed a crime, we have to let him in the country. You know, that's— for whatever you feel about the Russian government, they're not exactly known for playing with kid gloves for this kind of stuff, or really much kind of stuff. And so it is pretty extraordinary. I mean, he goes— he is identified by the FSB as a potential terrorist, and then he is allowed to visit Dagestan, which, for those who don't know, Dagestan is just, I think, east of Chechnya, and I think north of Azerbaijan— or no, maybe it's west of Chechnya. Yeah, it's west. And there's a lot of Chechens who are living there. And I think his uncle is living there as well, his mother's brother. And he is allowed to basically visit this hotspot of, essentially, like,

Chechen jihadist terror camps, essentially unmolested.

BEN 28:14

Yeah. And just to give, like, a thumbnail sketch of some brief historical background that makes this whole thing extraordinarily strange is, of course, there's the two Russian wars in Chechnya, in 1994 and 1999. And during that period, the U.S. was supporting these groups. I mean, people like Graham Fuller and his Jamestown Foundation were very much supportive of the Chechen cause. And even a lot of offshoots of al-Qaeda ended up in Chechnya as a part of this. So it was clearly a part of this geopolitical game to try to pull Chechnya, which had briefly been de facto an independent country, you know, out of— out of Russia. So then the fact that the— there is apparently some kind of relationship between the FSB and whatever American agency that was responsible for allowing Tamerlan to go to Russia is very strange, and it's unclear, like, what exactly is happening here.

The other thing that is so strange is that William Plotnikov, who was this Canadian who had a very similar biographical background to Tamerlan— he was a fighter. He had converted, so his family was not Muslim, so he was a convert, so he was different in that respect. But again, Western fighter who then goes to Russia to fight against the Russian government. But what happened is that— it's unclear if this is the source of the FSB's information about Tamerlan. It's probably not. But apparently, William Plotnikov's dad ratted him out to the FSB. That leads the FSB to pick him

up. And they look through his online contacts. It's unclear if he was in contact— I'm not sure if he was in contact with Tamerlan. Yeah, well, it does seem like the FSB got Tamerlan's name from Plotnikov in 2010.

So then the fact that Plotnikov dies while Tamerlan is in Russia, and, according to Novaya Gazeta, Tamerlan was an informant who gave information about Plotnikov to the Russian government, and that's what led to Plotnikov's death— it's just a very strange circle there of these two guys apparently informing on each other, or becoming sources of information for each other, that results in, ultimately, both of them being killed by state security services. It's just a very strange situation.

LIZ 30:39

Well, yeah, and security forces took out Plotnikov just days before Tamerlan ends up leaving Russia back for the U.S., in July of 2012.

BRACE 30:49

Yeah, I mean, as far as I can understand, sort of, the story goes that what Tamerlan was doing out there is— like we mentioned, I believe it's his mother's brother is the leader of an Islamist political party there, the Union of the Just, who actually could not find out a ton of information about. There's just not a lot written about them. But from what I can understand, a sort of, like— yeah, like an Islamist legal political party. He himself does not seem to be much of a violent guy. Apparently there are chat logs between— or recorded conversations, rather, between him and Tamerlan, that

Tamerlan recorded from, like, Zoom back in Boston, where his uncle's like, what the fuck are you talking about, you know, when Tamerlan's kind of, like, going off about wanting to do wage violent jihad and all of these kind of things. Nonetheless, though, he rubbed shoulders with some pretty scary gentlemen and is able to make some introductions for young Tamerlan.

Again, it's pretty unclear on his actual itinerary day-to-day, but it seems like he was going and hanging out with some guys who possibly are some heavies, you might say. And, like was mentioned in terms of Plotnikov, he leaves the country almost directly after Plotnikov is killed by an FSB raid on a small base— I think seven or eight people that Plotnikov was training on. There's also reporting, I think also by Novaya Gazeta, that Tamerlan took a little trip to Georgia to attend a Jamestown Foundation forum put on, I believe, by the Fund for the Caucasus—

LIZ 32:37

It's just Fund for Caucasus, which is an incredible, actually correct translation of what their day was. That's how they pay for Grindr Pro. I highly recommend people who are familiar with how to use the Wayback Machine to go look at their website from back, basically, before, like, you know, 2007-2008, because there's incredible liberal use of, like, Russian Orthodox GIFs. It's just a really bizarre— it is a really budget-looking, insane website that is one of the least official things I've ever seen, even for 2007-era internet. But Ben, what is this thing, the Jamestown Foundation? You said that it

was maybe possibly affiliated with a man named Graham Fuller.

BEN 33:24

Yeah, it seems like essentially a CIA front. Yeah. You know, there's certainly a lot of— I think, you know, as we've talked about in previous episodes about other topics, there's certainly disagreement in the CIA about certain topics. And I think on this topic, there is disagreement, but Fuller is a part of this group within the CIA and affiliated private intelligence groups that have been pushing for a particular policy around separating Chechnya. I mean, just in general, Fuller has been all about pulling Central Asia and these Turkic and Muslim areas in Central and the Caucasus out of the Russian orbit. And the Jamestown Foundation seems to be a part of this. And it's— yeah, like I say, it's essentially a CIA front that there are lots of people that are associated with it. In fact, Howie, I think you were telling me that somebody— one of Dzhokhar's professors, or somebody that he knew, was involved in this and was possibly in Georgia.

HOWIE 34:24

Yeah, so there's this weird anecdote about Dzhokhar. When he's in high school, gets in touch with this professor. I think he was some kind of— I can't remember if he was— it was, like, in Islamic Studies, or if he was just into the Caucasus or something. This professor— and this guy is CIA. Like, he's very outwardly CIA. He says this.

34:51

BEN

Yeah, Brian Glyn Williams. He says that he's the CIA's expert on suicide bombings, and he seems to be a pretty serious pro-Chechen independence guy. Oh my god. Yeah.

34:51

HOWIE

And so he was posting on social media about his amazing trip to Georgia that he had in the summer of 2012, and he was also involved with the Jamestown Foundation.

35:15

BEN

It seems very possible to me that if it's true that Tamerlan went to this, that there was some kind of contact, and this Brian Glyn Williams guy— it's a pretty common tactic for the CIA to have assets at universities to recruit people. And the fact that Dzhokhar was in touch with this guy and then ended up going to UMass Dartmouth, where this guy worked— Brian Glyn Williams was a professor at UMass Dartmouth— and then the fact that there's possibly that Tamerlan hooked up with this guy in Georgia while Tamerlan was visiting Russia— Russia. If the Novaya Gazeta reporting is true that he did go to this conference, that Tamerlan did go to this Jamestown Foundation conference in Georgia, it does seriously point to some kind of CIA involvement in this, which is just logical. That is the agency that you would expect would handle this sort of thing.

36:14

BRACE

I think with that too, Jamestown Foundation, I know, put out a statement saying Tamerlan Tsarnaev did not attend this conference. But to be

clear, it does seem unlikely to me that Tamerlan sat through a boring conference. The word CIA might sound exciting to a lot of you people, but I guarantee the conference at this was probably one of the most boring things that a human being could possibly attend. But that doesn't mean he wouldn't have gone and met with people who were putting on the conference or who were involved in the conference. And so I think that's a pretty easy way to thread the needle right there and be like, well, you know, he wasn't— he wasn't actually, like— he actually wasn't at, like, bodies and spaces in Georgia in the— in the 20th century. Like, he easily could have met any of these people outside of the conference or at secondary events, something like that.

But yeah, I mean, it's pretty— it's pretty— again, we do not have a clear picture on what Tamerlan was up to while he was there. But it does seem exactly like the kind of thing— I mean, if you know anything about the— the FBI and the CIA's involvement in their tracking of Muslims during the war on terror, which is obviously still ongoing, but at this point, we are really still in the heat of it— it would be highly unusual for them not to really know his movements at all.

LIZ 37:37

I want to say too, just as a funny aside— I was looking at some stuff, and Fund for Caucasus— I don't even want to give them the article. So Fund for Caucasus was so annoyed by this Russian report that they, like, put out a big statement that, you know, saying, like, denying any involvement, or denying that they knew any of these

guys. And they said— this is just so funny— they said, "We also believe that one of the main reasons for this information war is the fact that the president of the Caucasus Foundation, on the recommendation of well-known scientists and public figures from the countries of North and South Caucasus, Israel and Poland, was nominated for a 2013 Nobel Peace Prize."

BRACE 38:17
That is the true alliance of light, is the Caucasus, Israel and Poland. Listen, if we can get all of them in a room— maybe put it in Serbia— dude, we have— I'm telling you, sky's the limit.

LIZ 38:34
They're probably just lying and making stuff up. That's funny. But also, 240 people or something— 280 people were nominated for the Nobel Peace Prize in 2013, so it could be true, and it could be a really fun name on there, like Malala, who we know was nominated. Just kidding. But actually, Nobel Peace Prize nominations are kept secret for 50 years, which is total bullshit too, by the way.

BRACE 38:58
Malala also nominated because he's a Trotskyist.

BEN 39:03
One— I guess one other thing that, just to kind of situate this whole affair, because I think it is just hard to understand what was happening. There's a great Peter Dale Scott essay that appeared in Lobster Magazine called "The Global Drug Meta-Group." And it's all about these connections

between the CIA and certain elements that have controlled the drug trade through Afghanistan. There's a guy named Anton Surikov, who is a key figure in this. And he details in this meeting that took place in a villa owned by one of my favorite characters, Adnan Khashoggi, in France. And so you have this meeting between all these drug traffickers, where they are, according to some seemingly pretty reliable sources that even— that a lot of people in the U.S. have taken seriously— I mean, the Hoover Foundation, or the Hoover Institute rather, wrote up a big story about this— but all of this was all observed by the CIA. So it seems that there's this nexus of FSB elements, CIA elements, that's routed through these kind of secret intelligence organizations, like private intelligence organizations, groups like Far West Limited, and that.

So in any case, the upshot of this article, and I think it provides some good context, is that you need conflict zones. You need basically ungoverned areas in which to conduct drug trafficking, because otherwise the state is going to come in and try to mess with it— you know, like the formal, you know, public state, the police and things like that. So I think that this kind of joint operation to just sort of manage— it seems like possibly Tsarnaev— Tamerlan was part of this much broader project to sort of manage the conflict there, possibly for the purposes of furthering the drug trade.

You know, there are a lot of— that seems like one possible— because, again, it doesn't make sense to me

that the Americans and the Russians would be cooperating with respect to these, you know, Chechnya independence groups. Again, apparently Tamerlan was responsible for Plotnikov and another guy, Mahmoud Nidal, being killed. Why would the Americans want these groups that they had been supporting to be killed by the Russians? But it seems like a plausible angle for why they were cooperating in this instance was in furtherance of some goals surrounding the drug traffic. And it seems like a plausible way that this might have happened, because otherwise I really can't make heads or tails of what is going on here.

BRACE 41:42

I mean, to be fair too, Plotnikov doesn't seem exactly like that big of a fish either. I mean, he's well known because he's Canadian and a convert and all this stuff, but it's not like this is the guy who's planning out operations or anything like this. I mean, he's in a forest with seven other guys.

BEN 41:59

Yeah, but it gives the Russian interior ministry a pretext with which that they can now have military presence.

LIZ 42:07

Sure, and that domestic win, because they had just pulled off a bombing. And that Plotnikov's group had just pulled off a bombing, and so they were kind of going after them. And like you say, it gives them that, you know, that domestic win that then can shore up the support for them coming in with more security forces in the area, so—

BRACE 42:40

A lot of people don't know this, but Liz, prior to doing podcasts, was actually a rubber stamper at various government agencies. She— she patented the coin flipping trick, whether she approves or denies you by flipping a dime. Actually, she thought it was kind of like a more feminine way to do it, for the ladies, exactly. She had 7-inch long acrylics, and that's where I met her, drumming those on a desk impatiently while I sweated.

But Liz, that is why you're sort of our immigration expert here, plus you have the most foreign last name among us. How did this man even get into Russia?

LIZ 43:16

Well, okay, so remember when we were talking about the confusion with his immigration status and how it seems— and this is the, you know, kind of the theory that McPhee puts forward, I believe. She kind of like, you know, gets us there eventually, which is that trying to make sense of how his app— his immigration application would constantly be, like, pushed forward and then pulled back, or, you know, kind of like, you know, sped up. Like we said, it was like fast-tracked clearly after he came back from Russia, but then suddenly there would be a big question mark, because like someone who clearly wasn't clued in is like, this guy obviously can't be a citizen. He's got all these red flags on his application, right? So there's this kind of like push-pull happening.

The same was actually happening when you're trying to figure out how the hell this guy, who's on two different

terror watch lists from both the FBI and the CIA, right? How this guy even got out of JFK in 2012. He left out of JFK in New York to Moscow and then was able to then return into the United States with no one flagging anything at any point.

I think McPhee, for her part, seems to think that that's all due to, like— like we were saying, like lack of communication between the agencies. But I feel like when you actually comb through this, it seems like a lot of people were communicating a lot at a lot of different agencies pretty well and very easily with one another.

So you mentioned, Howie, you mentioned that the Russians had already tipped off the Americans at some point, that they believed that the Americans should be looking at this guy, Tamerlan Tsarnaev, and that he was radicalizing and he was getting into jihad stuff and that maybe the Americans should take a look at him. The FSB sent a letter to the FBI about this. And it's a little confusing. The FBI then goes and looks into it. Like we said, they look into it and they're like, oh, we didn't really see anything. He seems fine.

But as it turns out, even when you look into that, the file that they had opened up on Tamerlan, like totally— first of all, it like didn't— it didn't spell his name right in one of the files. And then they, in the first instance, they erroneously characterized him as a former prosecutor of Kyrgyzstan, which seems like a big fuck up for a kid who is a boxer and was never an adult in Kyrgyzstan, right? It's a little weird

too, because I believe that was actually one of his family members' professions.

BRACE 46:05

Well, his dad was also— he bought a law degree, apparently, which, I'll be real with you, I would love to purchase a law degree from Kyrgyzstan for a reasonable price, if any vendors out there are listening. But his dad apparently, like, either took some classes or purchased a law degree, it's sort of unclear, and was— was working in some capacity, likely an unofficial capacity, in a prosecutor's office too.

LIZ 46:32

Yeah, so they kind of like fuck up this whole thing. I mean, either or purposely, or— yeah, totally. They close the investigation. They say, oh, it's so weird, we don't see him, there's no tie to a nexus of terrorism— that's, they call it nexus. And then the Russians are like, okay, the FBI isn't listening to us, we're actually going to go and contact the CIA about this. So they contact and write another letter to the CIA, and at that point the CIA is like, okay, fuck it, we're gonna really, like, look into this guy. And so they open up another investigation. They— they finally get him. They kind of like go through the investigation and they're like, okay, yeah, we should probably flag this guy. And they put him on two different watch lists, right? The TIDE and the TECS.

So, okay. January 12th, which I want to highlight that for a second. January 12th, 2012 is when allegedly Tamerlan leaves New York for Moscow.

That date is disputed, and there are records that show both January 12th and there are records that show both January 21st. And I'll explain why at the end of this. Little teaser.

So for the government, this is how this works when someone flies, right? Customs gets passenger data from the flight. In this case, I think it was Aeroflot was the airline. They get information ahead of time, and then they take that passenger— you know, the passenger list, and they put it through in their little system. They go tippy tappy tippy tappy, and bing, something gets flagged or something doesn't get flagged, right? So it's not just when you show up they— that's the first time they check your name. They've already checked your name prior to departure.

There isn't any digital or written record of anyone basically notifying DHS that when they put this— when Aeroflot put in the passenger information, that a big red flag came up with Tamerlan's name on the manifest. That's normal procedure, right? They're supposed to notify. In the government, when they're doing their little, like, "mea culpaba," after their little "culpaba" report, they say, oh, well, it could have been that DHS was notified by sticky note. They actually say that it could have been sticky note, which is why we don't have any record of it, which is just very cute.

In any event, I want to be clear that Tamerlan was identified and flagged at JFK, but the government says— and this is on the departure— the government says that even though he was flagged,

he was, quote, "low priority relative to the other passengers of potential concern," so they didn't actually do any kind of outbound inspection of him before he departed.

BRACE 49:28
Interesting. Outbound inspection. I hate to see you go, but I would love to watch you leave.

LIZ 49:34
Also, who are the other people? He's on two terror watch lists. I understand that's not the no-fly list.

BRACE 49:40
But he's also leaving from JFK. JFK is, if you've ever flown in through that hellhole, there's a bunch of, like— there's, like, the militaries there. I mean, that is like the place where, like, we're watching for terrorists, because for some reason we think people are going to do a 9/11 again from here.

LIZ 49:58
Yeah, it just seems completely unreasonable that a guy that was flagged because he's on two watch lists was then said, actually, okay, we know you're on two and you got flagged, but we don't have enough time. We've got other people we got to deal with first. You should just go ahead. It's just total bullshit. That's not— that's just bullshit. I'm sorry.

HOWIE 50:15
And again, he's going back to the same area that, you know, his family claimed asylum from. So—

LIZ 50:21
That's— thank you for bringing that back up. Thank you, because I wanted to make that point. This is what's really crazy. So there would have been— DHS would have automatically flagged when an asylee— and his immigration status at the time, he's got a green card, but it was granted through, you know, after he was a child of an asylum— like, someone who was granted asylum. That would have been, like, the technical term for his status, his immigration status. And when someone returns to the country that they were getting asylum— like, you know, granted asylum from, that is an automatic flag in the DHS, like, computer system.

BRACE 51:03
Yeah.

LIZ 51:03
Because if you're returning to the hostile country, they're like, wait a second, why the hell would you be getting asylum from it? What are you doing over there if you're trying to get away from there? It seems like, you know, obvious flag, right? So either that happened and they dismissed that flag, or Russia was not the country that they were getting asylum from, which is— I just want to throw out there, because we don't know. It could have been Kyrgyzstan. It could have been— it could have been a lot of places.

So, fast forward, July 17th, just mere days after Plotnikov is killed in Russia, Tamerlan returns. He flies into JFK, and then from JFK flies into Boston, which I believe is Logan

Airport, if I remember correctly. He does not have a passport on him at this point. He uses his green card to enter, but it's unclear whether or not he presents a passport. There's no CBP documentation of him ever presenting a passport, or it was never entered into the system. It— to be clear, like, permanent residents aren't required to show a passport when they're coming back into the country. You can just show a residency card.

But I would say that that would be very odd, considering that, again, when you look up Tamerlan as when he was exiting the U.S., when he's entering back in, CBP would have looked him up in the system, and he would have been flagged because he's on two terror watch lists, right? That— so that usually what would then, in that case, like, normal procedure would be, okay, you've got a permanent resident card, you have your green card here, but we need to see an additional passport to see where you're coming from. Most importantly, because you've been flagged as on the terror list, and what you were doing there, and, you know, just normal— like, that's the line of questioning that customs would then take. None of that happened, because he actually was not flagged in the database.

Now, why wasn't he flagged in the database when he should have been before? So there's some real confusion here about what happened. And in the congressional hearings that followed the marathon bombing, there were a bunch of senators that were— they questioned a whole host of people, but one of the big ones was the DHS secretary at the time, Janet

Napolitano. And this was one of the exchanges. So Lindsey Graham— I'm not going to do a Lindsey Graham voice.

BRACE 51:03
(as Lindsey Graham) Well, hello there. I knew it was going to be—

LIZ 51:03
I do declare.

BRACE 53:37
I mean, how could a cut gentleman like this be allowed to leave?

LIZ 53:45
So Lindsey Graham says, "When he left to go back to Russia in 2012, the system picked up his departure but did not pick up on him coming back. Is that correct?" And Napolitano says, "That's my understanding, and I can give you the detail in a classified setting. The FBI TECS alert on him at that point was more than a year old and had expired."

BRACE 54:08
Lindsey Graham apparently replied to that with, well, knock me down with a feather.

LIZ 54:14
Yes, he should have, because she's lying. That's a lie. It's in the congressional report, in the government report, that the alert was not expired. It was still there. But there had been a change made to his file in March 2012, two months after he left the United States for Dagestan, that the alert was no longer set to display on computer screens for CBP agents at JFK. That was the fucking change that was made to

Tamerlan Tsarnaev's terrorist watch list flag report. That's so fucking crazy.

BRACE 54:51

Yeah. I mean, this guy— I'm telling you, I've flown without a— I think, like, 10 years ago, I flew without an ID. Like, I don't know where I was going, but it fucking sucks. Yes. It sucks ass. And I think that Tamerlan did leave— when he left, he did have a Russian passport that was still valid, but I believe it expired while he was in Russia, and he did not get it renewed. In fact, despite that being one of the stated reasons for his trip, he returned to America with an expired Russian passport. I don't know if he used it to get back into America, but certainly he did not have a working one.

BEN 55:29

I mean, this is just further points to the idea that somebody at some higher agency was fucking around to get this guy into and out of the country for some purpose, because why would this change be done to allow him to come back into the country unmolested? Like, what would the purpose of that be? I don't think that the DHS and the Immigrations and Customs, that they're just going around and doing this for anybody, right?

It's just kind of remarkable. I didn't know about this. And the way that McPhee characterizes this is that she sort of implies that it was the fault of the customs official on the ground. And you mentioned the sticky note thing. And she sort of implies that the alert did come up, but that it wasn't seen. And the fact that it was

somehow suppressed— I mean, who has the power to do that? And why would they have done that?

LIZ 56:20

And to a specific computer. I mean, it just is like, come on. It makes absolutely no sense. Yeah. I mean, it reminds me so much of the excuses that people made with 9/11. I mean, that's what I keep thinking of when they're like, oh, well, just, you know, oh, one individual failed to do this one thing. And then you get this butterfly effect where— and it just seems like— but no, like you say, it seems, you know, there's someone tippy-tappy somewhere, little hand of God, making sure that this kid can get in and will get out, but then really get back in undetected.

BRACE 56:55

Yeah, and to get out with the purpose here of rubbing shoulders with some people who believe in violent terrorism, you know, in blowing things up and shooting people, particularly Russian soldiers for the most part. You know, it's sort of extraordinary.

BEN 57:16

And seemingly acting as a provocateur. I mean, the fact that he was talking to Magomed Kartashov— you mentioned he was the guy that was running this sort of Islamist political party in Russia, and was, like, trying to— like, when you look at some of the— first off, there's the fact that Tamerlan was recording those conversations. Yes. And then secondly, what the content of them is, that he seems to be, like, egging Kartashov on, seemingly. Yeah. Like, that we need to fight and that

we need to do all this shit that is clearly illegal, which I'm sure Kartashov, if for no other reason than he doesn't want to get arrested by the Russian government, is not going to do. So it seems like almost a provocation. And that part of it is fully confirmed. We know that Tamerlan recorded these conversations. So this is bizarre.

BRACE 58:00

Yeah. At one point, Tamerlan brags to his uncle about how he disrupted his imam talking about Martin Luther King. And his uncle's just like— he made this big stink at the mosque, and his uncle's just like, what are you doing? Why are you acting so weird? But all the while, Tamerlan's recording this conversation.

HOWIE 58:19

Yeah, I believe Kartashov later ended up in jail as a result of that, or— I don't know if it was directly related or not.

BRACE 58:29

Yeah, no, he ended up in a Russian prison, and the FBI actually interviewed him there, which is— yeah, it's extraordinary.

There is another uncle that I think we need to talk about, because what is an uncle but a brother of a mother or a father? And this is Uncle Ruslan Tsarni. And I think if there's any kind of— like, people will have like a— like a second-tier knowledge of the Boston bombing thing, you probably remember the uncle, because, I'll be real, the man betrayed his family. He calls his son— his nephews losers on— on television. Tell me about this guy.

Who is— who is Uncle Ruslan?

LIZ 59:10

Well, Keith Olbermann called him the definition of a great American. I always thought— I thought that was a fun thing that you mentioned, that, you know, like, oh, if you have any kind of passing knowledge of this, you'll remember the uncle, because he really became a fucking media sensation. I mean, he was all over. There's, like, New Yorker articles about him. The Atlantic loves this man. Salon, Slate, all the usual suspects. They were like, you know, we can find one shining bright moment of this tragedy. It's the Uncle Ruslan, Uncle Tsarni.

You know, this is the Washington Post reporting at the time. They said— this is the name of the piece— "Muslims have a problem. Uncle Ruslan may have the answer." "Tsarni became Uncle Ruslan to millions of Americans watching him on TV and later online, winning their respect, first with apology and then, with his hands clenched, fierce indignation, outrage and anger over the suspected role of his nephews as the Boston Marathon bombers." But that's not— you know, that's not exactly who this man was.

HOWIE 1:00:23

Yeah, there was, you know, there was some weird stuff where, you know, he starts get— he gets— he gets asked by the, you know, press, you know, what— what he does for work, and he just says that he works. He doesn't say where. Very cagey about that. Good answer. Yeah. And so, you know, there's people start digging into this, and it turns out that, you know—

so he lived in Kazakhstan. As we mentioned, you know, the two daughter— the two sisters of— of the— the Tsarnaev brother and Tamerlan lived with him briefly while they were seeking asylum in the U.S.

So he had actually worked in Kazakhstan and in kind of in the general, you know, in the Central Asia region for energy companies. A lot of them were Halliburton-connected companies. And so in 2005, he later becomes this executive at this company called Big Sky Energy Corporation.

LIZ 1:01:21
I'm sorry, that is like a classic, classic cutout name of just the most basic, simple sounding— Big Sky Energy Corporation?

HOWIE 1:01:32
It gets better, Liz. It gets better. So the reason I bring this up is because they did this press release, and it's one of the good sources of information about Uncle Ruslan. So to start with, Big Sky Energy Corporation is an international oil and gas company. And at the time, 2005, they were trying to develop in the Pre-Caspian Basin in Kazakhstan, which, you know, is a huge—

BRACE 1:01:55
Big Sky Country.

HOWIE 1:01:56
Yeah, yeah, right, exactly. It's a huge, you know, natural resource for oil. And this press release just mentions that he has been— you know, he's worked for 10 years in oil and gas legislation and corporate law. And it also mentions that for two years,

starting in 1994, he worked for a holding company called Arthur Andersen LLP. And so that company would later be indicted in the Enron scandal. And then he worked for— he also worked for a company called Financial Markets International LLC.

BRACE 1:02:32

Okay, that is a fake— Financial Markets International? That's like— that's like, yeah, I work for the Commerce Corporation.

HOWIE 1:02:38

That's like right up there with Business International Corporation— yeah, yeah, yeah, yeah— for biggest, y'know, CIA cutout names. But those two groups were contracted by USAID for projects developing some kind of security markets in Central Asia. So Uncle Ruslan was working in oil and gas and for USAID and for Halliburton-connected companies in Central Asia in the 1990s.

BRACE 1:03:14

All good, brother. You're going to take food out of a man's mouth? Those are the only jobs you could get back then.

BEN 1:03:23

He got his start working for PricewaterhouseCoopers, basically doing the privatization of state assets. He basically graduated with his law degree, I think in 1994, when the privatization was happening. I mean, he's like full comprador, just taking the money from Western corporations to be their agent, essentially. Yeah. And of course there's his marriage relationship with

a certain supposedly ex-CIA agent.

BRACE 1:03:52

Yeah, so I mean, that's the thing, is I gotta say, if you're a guy in an Uncle Tsarni or an Uncle Ruslan type position, the kind of woman that you want to bag as soon as possible is the— I'm going to assume, I didn't actually look up a picture of her, but I'm going to assume the ravishing daughter of CIA agent and, let's say, Eurasianist, even though I don't know if that's really the most correct way to call it— let's say a Caucasusist— Graham Fuller, because he married Graham Fuller's daughter, and they were married for around five years. They lived in, I think it was Kazakhstan together, or Kyrgyzstan, but they lived in one of the K-Stans together. And no, I'm not talking about BTS fans. And they were married for about five years. It seems like he was actually, you know, he was fairly close with Fuller as well.

BEN 1:04:45

I think that they lived in Graham Fuller's house for a time in Kazakhstan. Yeah. Before they got their own place. So yeah, I mean, Graham Fuller says that he knew Ruslan pretty well.

LIZ 1:04:55

Well, it seems like they also— I mean, they also lived together in Maryland, where Graham Fuller was also based. And also pretty much everyone who works for the U.S. government is based— or has a base. Yeah, in Maryland. And I believe that, I mean, Graham Fuller, he actually ran a company out of Maryland called the

Congress of Chechen International Organizations, another classic name. And Uncle Ruslan, Ruslan Tsarni, was listed as the incorporated agent on the incorporation papers for that company.

HOWIE 1:05:30
So that company that Graham Fuller and Uncle Ruslan were running was giving resources to some Chechen groups. One of the leaders of one of these groups was named Sheikh Fathi, and he was providing support directly to the Chechen rebels and would later actually introduce a man named Ibn al-Khattab to the Chechen conflict. And Ben, do you want to just give us a little detail about al-Khattab?

BEN 1:06:03
Yeah, people may recognize Ibn al-Khattab's name because he was the Chechen who was an al-Qaeda affiliate, and he was the contact with Zacarias Moussaoui, the 20th hijacker. And this was the reason that Zacarias Moussaoui sort of came to the attention of the Minneapolis FBI office, which was then promptly suppressed so that Moussaoui would not be connected to the hijacking until after they had already happened.

BRACE 1:06:30
I mean, to put this in perspective, it is pretty— I mean, all right, I get it. You know, the Caucasus are not the most populated region of the world here, right? But there are a lot of different sort of astounding coincidences that kind of have to happen in order for the daughter of a CIA agent to be married to the uncle of the Boston bombers.

You know, it is— it is— I mean, I think just like, okay, even if every— even if we're totally off base here and every single other thing that we're saying, everything's wrong from top to bottom— I guarantee that ain't the case— but if it was, that's still itself fucking insane, right? Because that is what a beautiful kind of— and it's not just anybody, too. It's not just some— it's Graham Fuller. I mean, this is a guy who has a name. You know, this is not— this is not an unknown entity. They were married, I think, in the early 2000s, and I believe they divorced around 2004?

HOWIE 1:07:30

It was a little earlier than that. I've seen that reported, but they were married in the 1990s, and I think they divorced in '99.

BRACE 1:07:38

Gotcha.

BEN 1:07:40

Yeah, and it's not like Ruslan was just, like, their uncle. Right, it's not like he was just an agent, and then he was their uncle, and then he shows up later. He was also pretty instrumental in getting the Tsarnaev family to the United States. We mentioned the fact that the two younger sisters and Tamerlan lived with him in Kazakhstan while they were trying to get asylum. And it seems like he also introduced them to sort of the American Chechen diaspora, and seems to have secured them, at the very least, the first place that they were living in Massachusetts.

1:08:15

LIZ

So when the Tsarnaevs first get to the U.S., they actually— they got in touch with a surgeon named Dr. Khassan Baiev. This was reported in, I think it was like Rolling Stone, and the Boston Globe did a whole thing on, you know, backstory of the family and everything. And they lived in the house with the doctor, who was apparently friends with Anzor's sister, Maret Tsarnaev. So they lived in this house with the doctor before they kind of moved into their next apartment. And before they moved into that apartment, 410 Norfolk, which they lived in up until the bombing, right? They kept that apartment forever. They were staying with this doctor who, I got to say, seems a little— also a little, let's say, affiliated.

So he was also a Chechen immigrant. He was a Chechen doctor. He treated patients on both sides of the Chechen-Russian war. And he wrote a bunch of books about it. He published a book called The Oath: A Surgeon Under Fire, and Grief of My Heart. But he actually didn't write both of those books. They were pretty much co-authored, or, I don't know, ghostwritten, however you want to say it, by a man named Nicholas Daniloff, who was a journalist, but also maybe a little bit more than a journalist.

He was an American, educated at Harvard, but he was actually over in the USSR in the '80s. He was on the, like, I don't know, the Soviet desk for— I think it was like U.S. News, I think, was who he was working for at the time. But he was basically— the Soviets arrested him in 1986 on

suspicion of being a spy. And in '86, there was this huge scandal with the rate— under the Reagan administration, where they kind of had uncovered a bunch of American spies the Soviets had, and then the Americans were like, oh, well, here, we've got a ton of Soviet spies too. And, like, both sides were just expelling, like, hundreds of— of, you know, journalists and academics and affiliated diplomats, kind of just like, you know, in a war of attrition against each other. And Daniloff was like one of those guys.

I think he moved back to the States. The Soviets let him move back to the States along with Yuri Orlov, who people might know, pretty famous Soviet dissident. And basically, all of this is to say that they're all pretty spooky here, right?

BRACE 1:10:43

Well, Daniloff was also the grandson, I think, of a White Russian general as well. Yes, he was. You know, not to be whatever about it, but if you're— with a grandson of a White Russian general, that is generally a good indication. And you get arrested by the Soviet Union for being a spy, that is a pretty good indication that that's likely what you were.

LIZ 1:11:01

Yeah, absolutely. So this is from the acknowledgments of that book that Daniloff co-wrote with Dr. Baiev, The Oath: A Surgeon Under Fire. He says, "Because I want to express my gratitude to those who assisted my family's resettlement in New Jersey: Maret Tsarnaev, Ruslan Tsarni." So there seems to be a very close knit

between Dr. Baiev, Uncle Ruslan, and the Tsarnaev family in general.

BEN 1:11:36

Yeah, and just on the question of the housing and how the Tsarnaevs went from Khassan Baiev's place in Needham to then living in Cambridge, Masha Gessen has written about this in The Brothers, a book about Dzhokhar and Tamerlan and the history of the family. And it seems— and Gessen alludes to this fact— that there seems to be this Russophile loose network that is very full— I would say full of spies and assets— that exists in the Cambridge area.

And according to Gessen, the family apparently found out about the 410 Norfolk Street apartment via Daniloff. In fact, that Daniloff was the person who got them that apartment, or found out about it. And that apartment was owned by a woman named Joanna Herlihy, and she passed away in 2020, and she was sort of known in Cambridge as a— you know, I mean, when she died, the Cambridge City Council passed a resolution sort of honoring her. And so she was known as kind of, you know— I think she's a pretty archetypal Cambridge, you know, bleeding heart lib kind of a thing. And in fact, she did take in a lot of immigrants and asylees over the years.

She has her own interesting history. You know, she was in Jamaica in the Peace Corps at one point. In fact, that's where she met her third husband before she moved back to Cambridge. But before that, she was married to this guy, Alexander Lipson, and he died much earlier— he died in 1980— but he also seems to have been some

sort of spy or something like this, because Herlihy told Michele McPhee that Lipson had been in the KGB. And Lipson, when he came to the U.S. from Russia, was a Russian language teacher. He taught both at Harvard and MIT. And one of his students was none other than Graham Fuller. And in fact, McPhee characterizes Fuller as one of his best students. I don't know what her source on that, but seemingly that Fuller was sort of a protege of Lipson's.

So it seems that there's this network of— sort of a loose network of, again, spies and assets and defectors in the Cambridge area affiliated with both Harvard and MIT. And somehow the Tsarnaevs— well, not somehow, I mean, via Ruslan and via Graham Fuller and Daniloff and Khassan Baiev— they seem to become enmeshed in this network themselves. And again, there's so much talk about the FBI in this whole story, but I think that the CIA is always in the background of this family story.

BRACE 1:14:27

Yeah, absolutely.

So Ben, Howie, you guys— you live in the town, you're from the town, but do you run the town? This is the question on all of our listeners' lips right now. And thankfully, the FBI and the DHS actually solved this for us quite a while ago— quite a long time ago, rather— when they actually did an operation dubbed Operation Run This Town. And this, as far as I understand, wasn't just a Boston-based thing. I mean, this went all the way up to Maine. And by the way, I cannot possibly imagine why you're buying

crack in Portland, Maine. It's like, brother, just go anywhere. So it seems like one of the worst places in the world to smoke crack, besides Chechnya.

But there was a pretty big drug operation, a multi-agency drug operation called Operation Run This Town, and this actually seems to implicate, well, several people involved in the Boston bombing. And they sort of run around the periphery, and in one instance seemed to run right up almost in the middle of it. And so give us a little introduction. Like, tell us about what was going on here. What was this operation?

HOWIE 1:15:52

Yeah, so as far as the timeline, so this was happening before Tamerlan went to Russia. Basically, there was this federal investigation of these Muslim immigrants who were selling crack all over New England, but mostly based out of Portland, Maine. And apparently they were sending some of this money to al-Shabaab in Eritrea. A lot of them were Eritrean.

And so, interestingly, so this crew, this Portland crew, was run by this guy named Hamadi Hassan, and Hamadi Hassan moved to Cambridge— or, sorry, moved to Portland from Cambridge, Massachusetts in 2010. And so he had— he'd actually grown up in Cambridge. He went to high school with Tamerlan Tsarnaev. The two of them, you know, spent a lot of time together.

And so one of the things with this case was it was— it was basically made by informants. Yeah. And the whole— basically the whole thing is sealed. There's— there's no— you can't see

the— you know, at one point the— the phone call logs between the informant and Hamadi Hassan were available, but they're now sealed, and basically the whole case is sealed. But some intrepid reporters have gotten their hands on these phone call logs, and there's a bunch of calls between Hamadi Hassan and this informant, and they reference meeting locations such as the Wai Kru MMA gym that our listeners will remember from episode one, that Tamerlan trained at, as well as the Prospect Street Mosque in Cambridge that Tamerlan and his family went to, and a 7-Eleven near the mosque in Cambridge.

So it seems like from these phone call logs that we might have some reason to believe that Tamerlan— as I mentioned, he grew up with Hamadi Hassan, and they're meeting up basically at places that Tamerlan would have been traveling to. So it seems possible, and probably pretty likely, that Tamerlan might have been the informant in this case.

BRACE 1:18:12

Yeah, so to reiterate that, it's possible that Tamerlan Tsarnaev was— beyond the stuff we just talked about with Russia— was actually working hand in glove with the FBI, DHS, local police departments in order to bust a large Eritrean crack-selling group that was sending some of the money to al-Shabaab. I mean, Jesus Christ, man. It's like one of those things that just sort of defies even logic or anything. I mean, it doesn't defy logic whatsoever, but it is just sort of astounding.

LIZ 1:18:54
Well, it's funny too, because like you say, like, there's so little that we even know about it, right? We kind of— it's like people have had to piece together even when the time frame of this investigation was, because of how much has been under seal, and then, like you say, resealed in recent years after people were kind of looking into it.

HOWIE 1:19:15
Yeah, yeah, and from some of the information that we have, you know, it seems like this informant was working in 2011, and that the case kind of wrapped in early 2012, so like January 2012. And then interestingly, you know, Tamerlan took his trip to Russia at the beginning of 2012, you know, possibly having just proved his value as an informant in the United States. So, and then maybe doing the same thing abroad.

BRACE 1:19:45
Yeah, I mean, and a lot of these guys— I mean, there was— there was a— there was a huge amount of people busted, right? Like almost like— like 15 or 20 people involved in this ring.

HOWIE 1:19:55
Yeah, there was— it was a— it was a pretty big crew, I think. And you know, one of the interesting pieces of it was the gun that was actually used in the Sean Collier murders. So Michele McPhee did this investigative piece with ABC about how— about the, you know, the trip that this gun took. So it was purchased in Maine, and then it was given to one of the higher-ups in this crew named Binyam Sagai— they

refer to him as Icy— and then it was basically handed off eventually to one of Dzhokhar's friends, a guy named Stefan Silva. And you know, it's a little funny, his— Stefan Silva has a twin brother named Steven Silva.

BRACE 1:20:43

Yes. Come on. Yeah, they're spelled differently, though. They're spelled differently. But yes, it is. Stefan, I think, is even spelled like S-T-E-P-H-A-N, or is it E-N? I mean, they both look like Stevens.

BEN 1:21:00

Yeah. And Silva, at least Stefan Silva, seems to have been involved in this crew, this Portland-based crew that, again, had connections to Cambridge, and was close friends with Dzhokhar. I mean, they went to school, you know, Dzhokhar and Stefan knew each other. And so the fact that the Tsarnaev brothers apparently, you know, according to the government story, got the gun— well, not according to the government story, according to McPhee's reporting based on the documents and things that she's seen— got the gun that they apparently, allegedly, used to kill Sean Collier from this drug crew that was being investigated as a part of an investigation that Tamerlan seems to have been an informant for. It lends more credence to the idea that Tamerlan and Dzhokhar were definitely in a position to be able to inform on this.

The other question, of course, is what was Tamerlan's... Because to be an informant, one has to have a role in the organization that you're informing on. So it's not really clear what

would Tamerlan have been doing for them. You know, was he selling drugs? Was he an enforcer of some kind? He certainly had a lot of money that— you know, he drove a pretty nice car. He seemed to wear flashy clothing before he became, you know, so-called radicalized. He went to clubs all the time and was flashing lots of money. And it's unclear where he would have gotten that. And this is another one of the reasons why his status as... an informant, which, you know, he would have been paid cash money by the feds for doing that. But also he could have been making money in whatever his role was in this drug organization that he was informing on.

And Gessen, even Masha Gessen, like, based on the interviews in that Brothers book, even though that book came out in 2015, before a lot of the other documents relating to the Run This Town operation, just based on the background interviews, you know, Gessen also thinks that Tsarnaev was involved in this. And both McPhee and Gessen are not like— you know, they're very mainstream writers. So this— I almost think of this as like a semi-official story, or an official story for certain audiences, because the fact that he was an informant then helps to answer some of the other questions about, for instance, how was he able to leave the U.S. and get into Russia? It seems like a logical thing here, and it also seems like a source of how he would have gotten the money. I mean, as we said, on his death certificate, it was, you know, never had a job.

BRACE 1:21:00
Never worked, yeah.

BEN 1:21:00
Yeah, never worked. So, you know, he was getting that money from somewhere, and this seems like a very plausible place.

I guess we could mention the fact that Icy guy— so Icy guy, you know, was arrested and sent to jail as a part of this, and somehow, despite the fact that he should have been— he should have had a 20-year sentence, I mean, that's what he had— but he somehow was out of jail, and he managed to get himself murdered in Providence in January, just a few months ago.

BRACE 1:21:00
Really?

BEN 1:21:00
Yeah, so that's another little loose end that's been tied up.

LIZ 1:24:10
Just before our podcast came out.

BEN 1:24:13
Exactly. We were going to get an exclusive interview with him. I know.

BRACE 1:24:17
We had a sit-down with him and everything. And I told him, don't use your cell phone. Just send me letters. And he did.

HOWIE 1:24:24
But yeah. And one of the things that's kind of interesting about this is that he was supposedly under supervised release for five years. And I don't know how supervised it is. He was

caught at an illegal— basically an after-hours speakeasy in Providence, Rhode Island. So I don't know how well supervised that is if you're able to get in that situation and get shot.

LIZ 1:24:49

I know it was probably not this situation, but whenever you hear like "after-hours speakeasy" now, I just think of like a mustachioed, like, cocktailery, and the idea of this guy, like, breaking his supervised release to go get like a bespoke Negroni is very funny to me.

BRACE 1:25:04

Yeah, they had all these fake speakeasies in San Francisco a long time ago, where it's like you just, like, had to, like, make a reservation, and then they charge you $50 to go to a bar.

But you know, if you think that a guy getting killed, you know, after he was let out of prison a little too early is the last murder that we're going to be talking about this episode, then you are dead wrong, brother, because there is a case that is also connected to this, that is also seemingly connected to— well, not— I mean, yes, see, let's say allegedly connected to Tamerlan Tsarnaev, and that is an unsolved— officially unsolved— triple murder in a little town called Waltham. Waltham? Waltham. Waltham. Waltham. Waltham.

So on Sunday, September 11th, 2011— so this is a year before Dzhokhar gets his— Dzhokhar, aka Jahar, actually gets his citizenship, but it is September 11th.

LIZ 1:26:08
And 10 years after the real September 11th.

BRACE 1:26:09
Yes, exactly. There is an appalling scene that plays out within this apartment. So there's three guys, three friends: Brendan Mess, Raphael Teken, and Erik Weissman. They're all three— I think they know each other through an MMA gym, through Wai Kru. They're fighters. I gotta say, having the last name Teken and being a fighter is— I mean, you really— the guy was handed something on a silver platter. And these fellas sold drugs. They were— they were weed dealers, I believe. They sold a little coke, maybe, little pills. And Brendan Mess here was actually that— and you know, I think we were talking about this in either the last episode or maybe earlier in this episode, it's hard to tell at this point— but Brendan Mess is actually how— we mentioned before that Tamerlan would tell people he has only one American friend. That's Brendan Mess.

Weissman and Mess went to Cambridge Rindge and Latin, which is, I guess, the same school as Tamerlan. And Tamerlan and Brendan, who were around the same age, were actually there at the same time. They briefly, apparently, lived together, according to Michele McPhee, after high school, and seemingly were pretty close friends. They also like to party a lot. This is one of my favorite lines from Michele McPhee's book, and also just shows, because, you know, obviously she has a very strong, like, local cop bias here. She's like, they

like to party a lot, and there's cell phone footage of Brendan blowing a fat cloud of marijuana smoke before calling it "extra funky." You know, these guys like— these guys like to— like to fucking party.

And around eight months before he and a couple of his friends were brutally murdered, Erik Weissman's apartment was entered illegally by his landlord, which, by the way, a little TrueAnon tip here: your landlord cannot just come into your apartment, and if he does come into your apartment, there are castle laws in place where you can fire at least three shots at him totally legally. If they hit, they hit. If they don't, no problem. But either way, you're scot-free. That is legal advice.

Erik Weissman's landlord entered his apartment, probably being like, I think these guys are up to something funky, or looking for a reason to evict, or some reason, but it was illegal, and found just a ton— I think a hundred, like around a hundred pounds of weed, bunch of cocaine, hash, Vicodin, and OxyContin, along with some digital scales and a ledger of some of his drug deals. There was also $21,000 in cash there. And so— so these guys seemingly, at least Erik Weissman, was selling weed. I mean, these guys were kind of like low level. I think of these kind of people as like high school-type drug dealers, even though they're obviously past high school age. But like, unless you're dealing with some ice, some crack, or some heroin, I'm like, you know, you're still kind of like— it's like driving for, like, a pizza place or something. Like, it's like

part-time work, even if you're making a good amount of money.

HOWIE 1:29:13

Yeah, so, and at that point— so Weissman has drugs and money seized by the cops. You know, according to his landlord, he wasn't worried about the situation because of the fact that his— I mean, I think probably because— he doesn't say this, but probably because of the fact that his landlord entered illegally. But in another article, he did say that Weissman was close to a plea deal when he was killed.

But you know, basically there's a lot of reports that Weissman was trying to lay low, and he was staying at Brendan Mess's Waltham apartment, where he would later be killed. And he owed a lot of people money for the drugs that he was supposed to sell. And so one of Weissman's suppliers was an Armenian guy named Safwan Madarati, and Safwan Madarati had been arrested earlier that year, April of 2011. But before that, he had been getting information from a dirty Watertown cop named Roberto Velazquez Johnson, and they had a— they had a wiretap up on Madarati during when they're investigating him, and apparently Johnson, the cop, told him that he needs to lie low because someone was making him out to be a mule, the biggest mule in Massachusetts. And the cop, Johnson, even told him that the rats were talking. And so...

LIZ 1:30:38

Such a Boston movie cop. "The rats are fucking talking."

HOWIE 1:30:42
God. Yeah, I wonder if there's some editorializing there, if that's the actual quote.

BRACE 1:30:46
Yeah, most likely so.

HOWIE 1:30:49
But either way, it seems like Erik Weissman, his drugs and his money get seized, and, you know, the guy— his supplier is actually actively looking for a rat. And that kind of happens in the span of about three months. So Weissman gets— his stuff gets seized, and then Madarati gets arrested three months later.

BEN 1:31:13
And Madarati was connected also. He was also the supplier for the Eritrean drug crew based out of Portland that we talked to, Hamadi Hassan. So again, there are these connections between these drug crews, and as we mentioned, Tamerlan had some kind of informant role with that drug crew. And so the fact that— again, this gets into the question of what was Tamerlan's role in this drug crew, and is it possible that Tamerlan would have had some kind of connection with Madarati? Because what it seems— I mean, the official story of what happened, even though it's still technically unsolved, or at least what the cops say they think it is, is that it's some kind of drug-related murder. That's what they say. But at the same time, apparently the cops who arrive at this murder described it as looking like an al-Qaeda training video. That is, according to Michele McPhee, like one of the first things that the cops said

when they showed up on the scene. And so this is the reason why people had suspected that Tamerlan was involved.

But I do wonder about, you know, here's Weissman, who owes a ton of money to this guy, Madarati, who has already been demonstrated to be pretty dangerous. You know, Madarati was using his connections to the Watertown police to essentially put pressure on police officers who were not covering for him. I mean, this is a pretty typical relationship between police departments that are corrupt, which is an awful lot of them.

BRACE 1:31:13

Talked about it on our Dorner episode, yeah.

BEN 1:31:13

Yeah, that essentially the cops act as protection for these drug organizations. And Madarati had put Velazquez Johnson, this Watertown cop— or rather, this Watertown cop had told Madarati about two other cops that sort of weren't playing ball, and I think some police department or another arrested a couple guys who were casing these police officers' houses on behalf of Madarati. So it seems like going after rats is exactly the kind of thing that Madarati would do. Yeah.

The other thing is that apparently during this time period, Mess seems to have been under some kind of distress. There was this restaurant that they always used to go to, and the restaurant owner— you know, so they were killed in September of 2011, and they had some kind of meeting in this restaurant in August of 2011,

according to this restaurant owner, and he described Mess's attitude after that meeting as being really serious, and he wasn't himself. And so it seems like, again, there's something going on here where there's some kind of distress, possibly related to Weissman and this, you know, because at this point Weissman had been living with Mess at this apartment in Waltham. So it seems possible that this was essentially some kind of, you know, like— you know, kind of like, you know, the loan shark coming up, showing up to take his vig, and then it goes awry somehow, and the guys ended up being, you know, essentially decapitated. And so it's pretty brutal.

BRACE 1:34:26

Not just decapitated— on the head too. Two of the victims' penises were cut off as well.

HOWIE 1:34:34

Yeah, so the two Jewish victims, so Weissman and Teken, were sexually mutilated, and their— their penises were cut off and thrown on their bodies, and their bodies were sprinkled with weed. And there was a bunch of money, like $5,000 in cash left behind, and a lot of weed left behind, like pounds of weed. So again, this just kind of cuts against this idea that this was somehow a drug robbery. I don't know what kind of drug robber leaves drugs and money behind.

LIZ 1:35:09
A not very good drug robber, I suppose.

HOWIE 1:35:12
And the other thing is, you know, I would assume that a drug robber, if they're going to have to kill someone, would want to make it a clean kill, be in and out, not leave any DNA. And that's not what happened. So, you know, they were probably on the scene for a long time, and, you know, they nearly decapitated these guys. Like, that's a pretty serious, you know, thing, and they probably would have left DNA traces, you know, hair, whatever.

LIZ 1:35:40
Yeah, it's not an easy thing to do, too, right? I mean, it takes a good amount of force, like you're saying. They would have been there for some time, getting that done.

HOWIE 1:35:50
Yeah, and that's a good point, too, because, you know, obviously, like we mentioned, all three of these guys were, you know, MMA fighters.

BRACE 1:35:59
Yeah.

HOWIE 1:35:59
They're not— you know, these guys were no joke. Mess had a rap sheet. You know, he had threatened a cop at one point who was trying to arrest him, basically telling the cop that he would fuck him up.

BRACE 1:36:11
Yeah, I mean, and they were hacked to death, too. I mean, granted, they could have a gun pointed at them, which might make them a little more compliant. But still, I mean, they were essentially, like you said, decapitated, and then a couple of them were extra circumcised. I mean, it is— it is truly, like, you know, it's one of those things, too, it's like, basically a machete triple murder in the middle of a town, which is pretty wild to happen.

HOWIE 1:36:37
Yeah, yeah. And so the— the Middlesex DA, who, you know, by the way, was— he had a side gig where he was a referee, or at Lowell Stadium, for the Golden Gloves boxing tournament. So he would have known— I mean, you know, people knew Tamerlan, like they— you know, in the boxing world. So he would have known who Tamerlan was at that point.

LIZ 1:37:02
Also, you know what, referees— you know, referees are getting all sorts of deals on the side.

BRACE 1:37:06
I worked in boxing for a while. Let me tell you, those guys, they're— let's say they're malleable creatures.

HOWIE 1:37:13
But so he— so the DA, you know, indicates that there are two suspects. And there's this interesting note about the last known contact with outside world. So Erik Weissman's phone, a little before 9 p.m., he called a place in Waltham, Jerry's Italian Kitchen, and they ordered

chicken parm sandwiches or something like that. And the delivery driver shows up and calls the phone, but at that point, they were already dead, or at least were incapacitated and couldn't answer their phones. A lot of people, Waltham and Watertown residents, as well as cops, say that Tamerlan worked at this restaurant as a delivery driver under the table. And so it seems possible that he somehow— you know, we'll get into him being implicated, Tamerlan being implicated in this murder, but it seems possible that he could have, you know, somehow been tipped off about, you know, Erik's and Brendan's location, or Erik's location at Brendan's apartment.

BRACE 1:38:18

Actually, I want to cut in here and say that I actually remember off the top of my head what their order from Jerry's was. It was three chicken parms, three sausages, and three meatballs. And I remember that because I was like, damn, that's a lot of fucking food. These guys are really hungry. Maybe they had guests. Sunday night football, you know? They're bulking. Yeah.

HOWIE 1:38:36

Yeah, it was week one of the 2011 NFL season. Go Pats. Sunday night football. Go Pats. Yeah.

LIZ 1:38:43

How have we made it this— we've made it in almost two hours without saying "go Pats." That's incredible.

1:38:50

BRACE

Well, I don't know why you're saying that, Liz, but I've been texting you that, to you, this entire time. Every couple minutes, like a heartbeat, like a slow heartbeat of a long-distance runner who's trying to get onto the Pats.

So, I think we've got to round everything off here by talking about one of the reasons that we actually can really suspect that Tamerlan Tsarnaev was connected to the triple murder here, in that his good friend said he was, to the FBI. His good friend who was, immediately after telling that to the FBI, shot and killed by the FBI. So that brings us to Ibragim. Is it Ibragim? Yeah. Yeah. Okay. Ibragim, because it's spelled with a G. Ibragim Todashev, who, on the night of September 11th, 2011, the night of these triple murders, according to his roommate, his own roommate, he left town for Orlando, Florida, and never returned to Boston, to Watertown, to any of these beautiful locations. And I got to say, I've always thought of Orlando as the Boston of Florida. Really, the Hong Kong, the Boston of Florida, it's all kind of the same to me.

But after the bombings, there was really renewed interest in this triple murder, and Todashev was actually a suspect right alongside Tamerlan.

1:40:32

HOWIE

Yeah, so Todashev's neighbors in Allston said that after the bombings, some FBI agents went to his apartment in Allston, but he didn't live there anymore, but they went there looking for him.

1:40:45

BEN

And they were basically— immediately started to tail him. I mean, it was about five weeks between when the bombing happened and when Todashev was killed by the FBI. And it seems as though they were tailing him essentially immediately after they somehow found out that he had moved to Orlando. It seems inexplicable that they didn't already know that. But they apparently found him in Orlando pretty quickly and immediately started to look for him. I do find it interesting that, you know, there's no— it's not like there's new information that came out between when the murder happened in September of 2011 and then when the bombings happened. But for some reason, I guess just the fact of the bombing, you know, renews interest. I mean, in my opinion, it seems like, you know, this was a loose end that they needed to clean up after the bombings happened, which is why they go in and get him.

Because, yeah, on the fateful day for Todashev, on May 22nd of 2013, this group of FBI and Mass State troopers go down to Orlando, and I think the FBI— at least one of them, the one who was sort of leading the interrogation, if you could call it that— was from the Boston FBI office. Howie, let me know if that's not right. Yeah. And they— there are video recordings— recordings of this interview. There was also an audio recording that was turned off very shortly before Todashev was killed. But these are all sealed. According to the cops who were there, who were interviewing him, Todashev asked them to turn the camera off about, like, two or three hours

into the interview.

And the thing is that the FBI Boston agent, this guy Aaron McFarlane, who was the one that was sort of leading this for the FBI— he was the one who was actually in there interrogating Todashev— he was very dirty. He was definitely a dirty cop. He worked for the Oakland PD in California. He had been subject to a number of different internal affairs investigations for brutality. As is typical for cops, he retires on disability and then gets another job as a cop at the FBI, as an FBI agent. And I guess somehow was collecting his disability pension while he was working for the FBI.

LIZ 1:43:20
He was a cop in the Riders case, wasn't he?

BEN 1:43:20
Mm-hmm. Yeah, he was.

LIZ 1:43:20
Which was basically— for people who don't know about that case, but you did listen to our episode on Dorner— is basically like the Northern California version of the Rampart case. It was just, you know, cops acting completely and totally insane, brutalizing civilians and planting evidence and, you know, just running gang shit, basically.

BRACE 1:43:45
Yeah, Bay Area cops are— I mean, who can forget when three police chiefs had to step down in, like, a matter of a month, one after another, of the same department— I believe it was Oakland Police Department— because it came out they all had connections to,

or had themselves been party to, raping a 14-year-old girl. Yeah. So yeah, it is a very— yeah, awful police department.

BEN 1:44:09

This is the guy that the Boston FBI office picks to apparently go and investigate this guy. In my opinion, this was just straight up a hit squad. I think that they were basically sent in because whatever it is happened at that house in Waltham, the cops did not want any of this to get out. Tamerlan was dead, so that's one loose end gone. Obviously, the victims are dead. Todashev is the other person who's involved, and so they need to deal with him.

So they, you know, despite the fact that they are— they suspect that Todashev is involved in the triple murder, they agree to interview him in his apartment. I think Todashev had also wanted to meet in a public place, like at a hookah bar somewhere in Orlando. So he was— he didn't want to— I mean, I think he understood the threat that was, you know, present. He didn't want to go into a police— you know, into a police department, you know, interrogation room. So he wanted to do it at his house, and I think he had a friend with him who was there, but then that friend essentially gets escorted out into the parking lot while the interrogation is taking place.

HOWIE 1:45:14

Pretty much right before he was shot.

BEN 1:45:17
Yeah, yeah. And he convinces the— I'm certainly a shoes-off person in my house, so I can understand this. He convinces the FBI agents to take their shoes off when they come in.

BRACE 1:45:31
I'm a shoes-on guy. I put on boots. I take off my sneakers and I put on fucking thigh-high, like those, like— what is it— patent leather boots, articulated knees, Ben.

BEN 1:45:45
You know, if that does it for you, then, you know— me, I like to put my nice L.L. Bean slippers on.

BRACE 1:45:45
Oh, okay, yeah. Little house shoes situation.

BEN 1:45:45
Exactly.

BRACE 1:45:54
Mister, I live in the Northeast.

BEN 1:45:57
Well, in any case, it seems that Todashev picked up that habit when he was in New England. Well, he said— actually, he said it was because he was a Muslim, so, you know, you can't wear your shoes in the house. So they do— so they come in, these FBI— the FBI, Aaron McFarlane, and then two Mass State Police officers are interrogating him. It goes on for hours. Eventually, again— there are no— the video recordings are sealed, the audio recording was turned off shortly, you know, after this happened— but he starts writing his

confession, apparently, and he says that he wants to tell the story about "this robbery that me and Tam did in Waltham in September of 2011." And the gist of his alleged confession note is that it was at Tamerlan's— you know, Tamerlan was sort of the one who told him that they were going to do this, and that Tamerlan had a gun that he used throughout this, that they taped the three people's hands up, which doesn't seem to be true based on the scene. The three victims' hands were not tied up.

But then after they took the money— and this is according to the Supreme Court case about this. I think it was in the most recent case about Dzhokhar. But what the Supreme Court says is there— and I'm assuming this comes from the FBI— is that Tamerlan then insisted on killing the three men. And when Todashev disagreed, Tamerlan told him to wait outside. And then presumably that's when the, you know, decapitation took place as well. Todashev wasn't— wasn't in there.

So one of the Mass State Police officers, while this is being— while this confession note is being written, he goes outside to call this— the Middlesex County prosecutor, basically saying, like, we got him, like, you know, we did it, we got him to confess to this. So, Ibragim goes— Todashev goes to the bathroom, and when he comes back, the— now the final story of what happened is that he threw a coffee table at one of the officers, and that was what led to the officers deciding to— you know, the FBI agent and the Mass State Police officers— to shoot him. But there were so many stories before that story was the

definitive version, including a version where he went to the kitchen and was, like, rummaging around and went to go grab a knife. He did have a samurai sword, katana, on his wall that, during one of his trips to the bathroom, one of the— one of the, you know, either the FBI agent or Mass State Police officers grabbed it off the wall and, like, stuck it, you know, somewhere, like, between the refrigerator or the cabinet or something like that.

BRACE 1:45:57

The shinobi's trick.

BEN 1:45:57

Yeah, but it's not clear at all why the story changed so many times, because the— you know, for instance, you have a version of the story where the police say they grabbed the sword off the wall. And then there's also a version of the story where Todashev used the sword against them. And so it seems that basically— again, this is why I think that this was just a hit squad. They didn't really— they weren't really straight on their story of what happened. It seems pretty clear— how could you confuse grabbing the sword off the wall versus Todashev using the sword versus Todashev lifting the coffee table and throwing it?

BRACE 1:49:18

It just doesn't make any sense. You know, you got a group of cops in there, you should be able to beat up a guy with a broom. You know, I mean, that is— listen, as a guy who's always coming home late, I've been beaten with a lot of brooms in my life. And

yeah, if you gotta— you got three guns on the guy. I mean, you can— you can— it's— it's— it's— it— the story never made any sense to me, because it's like, all right, this guy just confesses to this murder, right, implicates one of his, you know, good buddies in this, and then goes and takes a leak and comes back and goes— you know, he's like in berserker mode, you know, he goes— he goes crazy on these fucking cops. It doesn't make a lot of sense whatsoever. But they plug his ass full of holes.

BEN 1:50:02

Yeah, they shot him, like, half a dozen times. And, you know, again, I think that the timeline of this— like, they got the confession that they wanted, you know, they have put a neat bow on this triple murder that they had not been able to solve, and then they— everybody— I mean, again, if it was Madarati who somehow ordered this hit and possibly, let's say, ordered Tamerlan to do this, that would be the only person who would know about it, but Madarati's in prison, and, you know, and everybody else involved is dead. So, you know, I think it's just a neat— a nice neat bow on it.

One of the— one of the just kind of bizarre— another bizarre coincidence in this is that Todashev's dad apparently had some kind of professional relationship with Ramzan Kadyrov, and Kadyrov, like, wrote a letter denouncing this. I think— I think Todashev's dad worked in— in the Grozny, like, municipal office, like was a— like was a pretty senior person there. So it seems to have been connected to Kadyrov in some way. Violent.

1:51:11

BRACE

One of the worst guys to write you a letter in your family, probably in the world.

1:51:15

BEN

Yeah. He's a— he's a guy who knows a little thing or two about extrajudicial murder.

1:51:19

BRACE

Yeah, yeah, yeah. Yeah, I mean, it's— it's also— speaking of Kadyrov, at one point, I believe, some congressional investigators were— Steven Seagal, when they were investigating this, Steven Seagal offered to introduce them to Kadyrov, and they had to turn him down. But what a meeting that would be. Yeah.

I mean, they executed him, and they shoot him— they shoot him, like you said, like at least half a dozen times. And I believe the final shot was at the very top of his head, too, like the crown of his head. So, I mean, they fucked him. There was no way he was walking out of there. Almost everybody in this story— and by almost everybody, I mean all of— all of the Muslim people who were shot aren't just shot, like, once or twice. They're shot, like, with, like, half a fucking clip's worth of fucking ammunition. It's— it's— it's truly, you know, it's— people do— I have no, no compunctions about wasting ammo on these guys.

1:52:13

HOWIE

Yeah, and so— and so, like Ben mentioned, this— this kind of, you know, it wrapped up this case. I mean, it's still— it's still unsolved, you

know, formally, publicly, but, you know, it— they kind of wrapped it up. They got the confession, and, you know, this didn't go to court, you know, there's— which would have opened up another opportunity for more stuff to come out.

And then later, actually recently, the— so Dzhokhar— we'll get into this more later on, but Dzhokhar was sentenced to death. He appealed it. His appeal was successful. And then very recently, this— that this— the appeal went to the Supreme Court, and they— they overturned that appeal. And one of the things they mentioned, SCOTUS, in their decision was that, you know, basically, Dzhokhar's defense— part of his defense was about this Waltham triple murder that he allegedly knew about, that his brother did, and, you know, sort of was intimidated by his brother because of this violence. And so they argue that he sort of went along with his brother, his older brother, Tamerlan. What the SCOTUS decision sort of says is, you know, because the FBI agents had killed Todashev and because Tamerlan is dead, you know, basically everyone who's involved in this triple murder is now dead. Therefore, you know, it's not relevant anymore. And they were able to successfully exclude that evidence from the trial.

LIZ 1:53:46

Yeah, Dzhokhar's lawyers were not able to— basically the judge, O'Toole, who we'll get into a lot when we talk about the trial, but he didn't let Dzhokhar's defense introduce any evidence about the Waltham murders as a part of basically saying that, you know, his brother was running this

whole thing, he was a scary guy, you know, he was right to be intimidated, and he— there was— he had, like— it was totally reasonable, and he had grounds to fear his brother, that he was a dangerous individual, and he had to kind of follow what he was doing. And it was a way of contesting the death penalty, basically.

And like you say, the appeals court found that really credible and said, yeah, it's insane that they didn't let this— this— this evidence in. Like, this seems to be very, like, important to understanding their relationship and understanding, like, who Tamerlan was. And the Supreme Court just completely shot it down. Like you said, not relevant, everyone's dead, case closed. And now, as we'll talk about in next episode, Dzhokhar's gonna— I mean, he's gonna fry. Well, we'll see about that.

BRACE 1:54:58

Not if I have anything to do with that. I've been called Boston's own Clarence Darrow, and I'll tell you this, Liz: I will get this kid off. Well, don't clip me saying that, because that can really be taken out of— no, that can really be taken out of context, and frankly, that's happened to me a half a dozen times already. I don't need that happening again.

But yeah, no, next— next, we are getting to Dzhokhar. We are— we are— we are putting our eyes on the younger brother. And if you think that Ibragim was the only sort of friend or associate of the Tsarnaev brothers to get the full long arm of the law wrapped around their necks in the

aftermath of these bombings, then brothers, sisters, you are wrong. There are quite a few other people who get wrapped up in this, even people who had really, frankly, nothing to do with anything. But yeah, you know, with that being said, my name is Brace.

LIZ 1:55:52
I'm Liz. We are joined here by...

HOWIE 1:55:52
Howie.

BEN 1:55:52
And I'm Ben.

LIZ 1:55:52
And of course, producer Young Chomsky. And this has been TrueAnon. We'll see you next time. Bye-bye.